

HOUSE BILL 1909

By Hicks G

AN ACT to amend Tennessee Code Annotated, Title 4, Chapter 29; Title 8, Chapter 50; Title 33; Title 36; Title 52; Title 56; Title 63 and Title 68, relative to therapists.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 4-29-248(a)(5), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 2. Tennessee Code Annotated, Section 8-50-117, is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 3. Tennessee Code Annotated, Section 8-50-119(b)(1)(A), is amended by deleting "marital and family" wherever it appears and substituting "marriage and family".

SECTION 4. Tennessee Code Annotated, Section 33-1-101(20), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 5. Tennessee Code Annotated, Section 33-3-201(a)(2), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 6. Tennessee Code Annotated, Section 36-6-413(b)(5)(C)(iii), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 7. Tennessee Code Annotated, Section 52-1-101(14), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 8. Tennessee Code Annotated, Section 52-3-201(a)(2), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 9. Tennessee Code Annotated, Section 56-7-2401(a), is amended by deleting "marital and family" wherever it appears and substituting "marriage and family".

SECTION 10. Tennessee Code Annotated, Section 63-1-125(b)(1)(A), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 11. Tennessee Code Annotated, Section 63-1-201(2)(I), is amended by deleting "Marital and Family" and substituting "Marriage and Family".

SECTION 12. Tennessee Code Annotated, Section 63-11-302(6)(J), is amended by deleting "marital and family" wherever it appears and substituting "marriage and family".

SECTION 13. Tennessee Code Annotated, Section 63-11-409(b)(5), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 14. Tennessee Code Annotated, Section 63-22-101(a), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 15. Tennessee Code Annotated, Section 63-22-102, is amended by deleting "marital and family" wherever it appears in subdivisions (5), (6), and (7) and substituting "marriage and family".

SECTION 16. Tennessee Code Annotated, Section 63-22-103, is amended by deleting the section and substituting:

(a) The board shall license without examination a marriage and family therapist applicant who is licensed to practice independently and is in good standing in another state or territory if the applicant's qualifications meet the licensure requirements under this part.

(b) The board may enter into a reciprocal agreement with another state that licenses marriage and family therapists.

(c) The board shall license by endorsement a marriage and family therapist applicant who is licensed to practice independently in another state or territory upon receipt of the following:

(1) A completed application for licensure by endorsement;

- (2) Payment of all application fees;
- (3) Documentation of all marriage and family therapist licenses the applicant has ever held and the disciplinary status of each;
- (4) Successful completion of the Tennessee jurisprudence exam;
- (5) Proof that the applicant is at least eighteen (18) years of age; and
- (6) Evidence of highly regarded personal character and professional ethics.

SECTION 17. Tennessee Code Annotated, Section 63-22-106, is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 18. Tennessee Code Annotated, Section 63-22-107(c), is amended by deleting "marital and family" wherever it appears and substituting "marriage and family".

SECTION 19. Tennessee Code Annotated, Section 63-22-110(c), is amended by deleting "marital and family" wherever it appears and substituting "marriage and family".

SECTION 20. Tennessee Code Annotated, Section 63-22-113, is amended by deleting the section and substituting:

- (a) This part does not apply to:
 - (1) Activities and services of a student intern or trainee in marriage and family therapy who is pursuing a program of studies in marriage and family therapy at an accredited institution of higher learning, if such activities are performed under supervision and are part of a supervised program of study; or
 - (2) A person who is under a supervisory arrangement recognized and approved by the board and who is working in a community mental health center, as defined in § 33-1-101, residential or inpatient facility, intensive outpatient facility, or federally qualified health center.
- (b) Notwithstanding this part to the contrary:

(1) A person enrolled in a program as described in subdivision (a)(1) may use the titles "marriage and family therapy intern," "family therapy trainee," or "student therapist"; and

(2) A person who has completed a graduate degree and is under supervision and pursuing independent licensure in marriage and family therapy as described in subdivision (a)(2) may use the title "pre-licensed marriage and family therapist" or a postgraduate designation.

(c) This part does not prohibit qualified members of other professional groups as defined by the board, including licensed clinical social workers, licensed psychologists, licensed psychological examiners, licensed senior psychological examiners, certified psychological assistants, psychiatric nurses, physicians, attorneys at law, or members of the clergy from performing or advertising that they perform the work of a marriage and family therapy nature consistent with the accepted standards of their respective professions, or prohibit alcohol and drug abuse counselors licensed pursuant to title 68, chapter 24, part 6, or operating under qualified supervision while seeking such certification from performing counseling consistent with the accepted standards of that profession.

SECTION 21. Tennessee Code Annotated, Section 63-22-114, is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 22. Tennessee Code Annotated, Section 63-22-115(a)(3), is amended by deleting the subdivision and substituting:

(3) "Board-approved marriage and family supervisor" means a person who gives to the board evidence of:

(A) At least five (5) years full-time experience as an independently licensed marriage and family therapist with an unencumbered license and no less than the last two (2) years of experience completed in this state; and

(B) Thirty (30) hours of instruction specific to the practice of marriage and family therapist supervision through a board-approved continuing education provider;

SECTION 23. Tennessee Code Annotated, Section 63-22-115(a)(4), is amended by deleting the subdivision and substituting:

(4) "Licensed marriage and family therapist" means a person to whom an independent license to practice has been issued pursuant to this part, which license is in force and not suspended or revoked as of the particular time in question;

SECTION 24. Tennessee Code Annotated, Section 63-22-115(a)(5), is amended by deleting "marital and family systems" and substituting "marriage and family systems" and deleting "Marital and family" wherever it appears and substituting "Marriage and family".

SECTION 25. Tennessee Code Annotated, Section 63-22-115, is amended by deleting "marital and family" wherever it appears in subsections (a), (b), (e), and (g) and substituting "marriage and family".

SECTION 26. Tennessee Code Annotated, Section 63-22-115, is amended by adding the following as new subsections:

(h) An approved supervisor may use and indicate designation as an approved supervisor using the abbreviation "LMFT-S." A supervisor in training shall not use such abbreviation.

(i) To maintain board-approved supervisor status, an approved supervisor must provide proof of completion of six (6) hours of supervision continuing education every two (2) years, which is in addition to any continuing education requirements for

maintaining licensure. At least three (3) hours must be relevant to ethics and state laws governing the practice of marriage and family therapy.

SECTION 27. Tennessee Code Annotated, Section 63-22-121(b), is amended by deleting "marital and family" wherever it appears and substituting "marriage and family".

SECTION 28. Tennessee Code Annotated, Section 63-22-206(a)(4), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 29. Tennessee Code Annotated, Section 63-22-403, is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 30. Tennessee Code Annotated, Section 63-22-404, is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 31. Tennessee Code Annotated, Section 63-32-102, is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 32. Tennessee Code Annotated, Section 68-1-101(a)(8)(C), is amended by deleting "marital and family" and substituting "marriage and family".

SECTION 33. This act takes effect July 1, 2026, the public welfare requiring it.